Semester – I

PS-MDSC

Multidisciplinary Courses (MDSC)
Paper: Rights: Ideas and Movements

Total Credits: 3 credits (Theory: 30 hrs + Tutorial: 15 hrs)

Max.Marks	:	75 marks
Theory	:	68 marks
Int. Ass.	:	07 marks
Time	:	3 hours

Course Objectives:
The paper introduces the various ways in which the notion of rights has been conceptualized in theory and the debates emerging from the rights-based movements.

Course Outcomes:
On completion of this course, the students would be able to understand the existing debates on human rights across countries through a comparative study.

Pedagogy of the Course Work:
The students will be assessed on the basis of written examination comprising of 68 marks and continuous internal assessment of 07 marks on the basis of Unit test, Snap test, Attendance, Class assignments and class room participations.

Instructions for Paper-setter and candidates:

1. There shall be 7 questions in all. The first question shall be compulsory and be short answer type containing 10 short questions spread over the whole syllabus and to be answered in about 25 to 30 words. The candidate is required to attempt any 7 short answer type questions carrying 2 marks (7x2 = 14 marks). Rest of the paper shall contain 3 units. Each unit shall have two questions and the candidates shall be given internal choice i.e. the candidates shall have two questions and the candidates shall attempt one question from each unit i.e. three questions in all. Each question will carry 18 marks (3x18 = 54 marks).
2. For private candidates who have not been assessed earlier for internal assessment, the marks secured by them in theory paper will proportionately be increased to maximum marks of the paper in lieu of internal assessment.

The paper –setter must put note (ii) in the question paper.

Course Content

Unit-I
Notions of Rights:Nature/Characteristics, Classification of Rights: Civil, Economic and Political

Unit-II
Human Rights:Nature/Characteristics
Farmers Movement: Issues in Post Green Revolution Period
Environment Movement: Narmada Bachao Movement, Tehri Dam Conflict

Unit-III
National Human Rights Commission: Composition and Functions
Issues of Displaced People with special reference to North-Western India

Suggested Readings

1. Baxi, Upendra (2002), The Future of Human Rights, Oxford University Press, Delhi.
2. Beteille, Andre (2003), Antinomies of Society: Essays on Ideology and Institutions, Oxford University Press, Delhi.
3. D. O'Byrne, (2007) 'Apartheid', in Human Rights: An Introduction, Delhi: Pearson, pp. 241- 262.
4. D. O'Byrne, (2007) 'Theorizing Human Rights', in Human Rights: An Introduction,Delhi, Pearson, pp.26-70

5. Donnelly, Jack, *The Concept of Human Rights,* Croom Helm, London, 1985.
6. J. Hoffman and P. Graham, (2006) 'Human Rights', Introduction to Political Theory, Delhi, Pearson, pp. 436-458.
7. M. Mohanty, (2002) 'The Changing Definition of Rights in India', in S. Patel, J. Bagchi, andK. Raj (eds.) Thinking Social Sciences in India: Essays in Honour of Alice Thorner Patel, New Delhi: Sage.
8. Macfarlane, L. J., *The Theory and Practice of Human Rights,* Maurice Temple Smith, London, 1985.
9. Motilal, Shashi and Nanda, Bijayalaxmi (2006) Human Rights, Gender and the Environment, New Delhi: Allied Publishers.
10. Priyam, Manisha; Banerjee, Madhulika and Menon, Krishna (2009) Human Rights, Gender and the Environment, New Delhi: Pearson.
11. Tripathy, Radhanath (ed.) (2019) Human Rights, Gender and the Environment, New Delhi: Scholartech Press.

Semester – II

PS-MDSC

Multidisciplinary Course (MDSC)-2

Paper: Indian Constitution: An Introduction

Total Credits: 3 credits (Theory: 30 hrs + Tutorial: 15 hrs)

Max.Marks	:	75 marks
Theory	:	68 marks
Int. Ass.	:	07 marks
Time	:	3 hours

Course Objectives:

The course aims to familiarize students from different disciplines to have an understanding of the Constitutional antecedents, the historical contexts of its origin and its basic tenets. It aims to introduce to the students the basic feature of the Indian constitution and philosophy behind them.

Course Outcomes:

On completion of the course, the students would understand and explain the significance of Indian Constitution as the fundamental law of the land.

Pedagogy of the Course Work:

The students will be assessed on the basis of written examination comprising of 68 marks and continuous internal assessment of 07 marks on the basis of Unit test, Snap test, Attendance, Class assignments and class room participations.

Instructions for Paper-setter and candidates:

1. There shall be 7 questions in all. The first question shall be compulsory and be short answer type containing 10 short questions spread over the whole syllabus and to be answered in about 25 to 30 words. The candidate is required to attempt any 7 short answer type questions carrying 2 marks (7x2 = 14 marks). Rest of the paper shall contain 3 units. Each unit shall have two questions and the candidates shall be given internal choice i.e. the candidates shall have two questions and the candidates shall attempt one question from each unit i.e. three questions in all. Each question will carry 18 marks (3x18 = 54 marks).
2. For private candidates who have not been assessed earlier for internal assessment, the marks secured by them in theory paper will proportionately be increased to maximum marks of the paper in lieu of internal assessment.

The paper –setter must put note (ii) in the question paper.

Course Contents

Unit-I

Founding Principles of Indian Constitution: Preamble
Indian Constitution:salient features

Unit-II

Fundamental Rights: Articles 14 to 32
Fundamental Duties

Unit-III

Union Parliament: LokSabha: powers and functions, RajyaSabha: powers and functions
President: Powers and Position
Supreme Court Jurisdiction

Suggested Readings

1. Making of the Constitution of India: Constitutional Antecedents, Constituent Assembly Debates

(a) Constitutional antecedents

1. ArunThiruvengadam, 2018, Origin and Crafting of the Constitution (pp. 11 to 26), in *The Constitution of India, a Contextual Analysis*, Hart Publishing.
2. D DBasu, 2011, The Historical background in *Introduction to the Constitution of India* (20thed.). 134Lexis Nexis, India.
3. ShibaniKinkarChaube, 2010, Pre History, in *The Making and Working of the Indian Constitution*, NBT, India.

(b) Making of the Constitution of India

1. Granville Austin, 1966, The Constituent Assembly- Microcosm in Action, in *Indian Constitution, Cornerstone of a Nation*, OUP.
2. ShibaniKinkarChaube, 2000, Birth of the Constituent Assembly, in *Constituent Assembly of India: Springboard of Revolution*, Manohar.
3. SubhashKashyap, 1994, Making of the Constitution, in *Our Constitution: An Introduction to India's Constitution and Constitutional Law*, NBT, India.
4. Udit Bhatia, 2018, edited, *The Indian Constituent Assembly: Deliberations on Democracy,* London, Routledge.

2. Basic Features of the Indian Constitution

1. B R Ambedkar, 2010, Basic features of the Indian Constitution, in Valerian Rodrigues (ed), *The essential writings of BR Ambedkar*. Oxford University Press, India.
2. D DBasu, 2011, Outstanding Feature of Our Constitution in *Introduction to the Constitution of India* (20thed.). Lexis Nexis, India.
3. Ivor Jennings, 1953, Introduction, in *Some Characteristics of Indian Constitution,* G Cumberlege and Oxford University Press.
4. MadhavKhosla, 2012, *The Indian Constitution*. New Delhi: Oxford University Press.
5. MadhavKhosla, 2020. *India's Founding Moment: The Constitution of a Most Surprising Democracy*. Cambridge: Harvard University Press
6. SujitChoudhry, MadhavKhosla and PratapBhanu Mehta*,* 2016, *The Oxford Handbook of the Indian Constitution*, New York, Oxford University Press.

3. Fundamental Rights

1. *Constitution*, NBT, India. D DBasu, 2011, Fundamental Rights and Duties (pp. 79- 142),in*Introduction to the Constitution of India* (20thed.). Lexis Nexis, India. ArunThiruvengadam, 2018, Fundamental rights, Directive Principles and the Judiciary (pp. 118-137), in *The Constitution of India, a Contextual Analysis*, Hart Publishing.
2. Primary text: Article 14- 32, Part III, The Constitution of India Granville Austin, 1966, The Conscience of the Constitution- Fundamental Rights and Directive
3. Principles of State Policy- I (pp. 63-94), in *Indian Constitution, Cornerstone of a Nation*, OUP ShibaniKinkarChaube, 2010, Rights of Indians, in *The Making and Working of the Indian*

4. Obligations of State and Duties of Citizens

1. D DBasu, 2011, Directive Principles of State Policy (pp. 79- 142), in *Introduction to the Constitution of India* (20th ed.). Lexis Nexis, India.
2. Gautam Bhatia, 2016, Directive Principles of State Policy, in SujitChoudhry, *et al*, *The Oxford Handbook of the Indian Constitution*, New Delhi: OUP
3. Ivor Jennings, 1953, Directives of Social Policy, in *Some Characteristics of Indian Constitution,*135 G Cumberlege and Oxford University Press.
4. Primary text: Article 36- 51A, Part IV and IVA, The Constitution of India
5. ShibaniKinkarChaube, 2010, Duties of State and Citizens, in *The Making and Working of the Indian Constitution*, NBT, India.

5. Organs of Constitutional Governance- Legislature, Executive and Judiciary

1. ArunThiruvengadam, 2018, The Executive and the Parliament, in *The Constitution of India, a Contextual Analysis*, Hart Publishing
2. *Constitution*, NBT, India Granville Austin, 1966, *Indian Constitution, Cornerstone of a Nation*, OUP, pp. 145- 230.
3. *Constitution*, NBT, India S.K. Chaube, Union Government 2: The Legislature, in *The Making and*

Working of Indian
4. D.D. Basu, 2011, The Judicature (pp. 299- 313), in *Introduction to the Constitution of India (*20thed.). Lexis Nexis, India.
5. M.R. Madhavan, 2017, Parliament, in D. Kapur, P.B. Mehta and M Vaishnav (eds.), *Rethinking Public Institutions in India*, Oxford University Press
6. PratapBhanu Mehta, 2005, India's Judiciary: the Promise of Uncertainty, in *Public Institutions in India: Performance and Design*, OUP, India.
7. Primary Text: Part V, The Constitution of India S.K. Chaube, Union Government- 1: The Executive, in *The Making and Working of Indian*
8. Punam S Khanna, 2008, The Indian Judicial system, in K Sankaran and U K Singh (eds), *Towards Legal Literacy: An Introduction to Law in India*, OUP.
9. SudhaPai, 2020, *Constitutional and Democratic Institutions in India: A Critical Analysis*, Hyderabad, OrientBlackswan.

6. Centre-State Relations and Decentralization

1. D DBasu, 2011, Distribution of Legislative and Executive Powers, in *Introduction to the Constitution of India (*20thed.). Lexis Nexis, India.
2. Ivor Jennings, 1953, Indian Federalism, in *Some Characteristics of Indian Constitution,* G Cumberlege and Oxford University Press.
3. M.P. Singh and RekhaSaxena, 2013, Asymmetrical Federalism, in *Federalising India in the Age of Globalisation,* Primus
4. S.K. Chaube, Local Government, in *The Making and Working of Indian Constitution*, NBT, India.